



ESTABLISHMENT OF THE OFFICE OF WAFAQI MOHTASIB (OMBUDSMAN) (AMENDMENT) ORDINANCE, 2002

Last Updated: 2002-12-01

Contents

	PREAMBLE
1	SHORT TITLE AND COMMENCEMENT
2	AMENDMENT OF ARTICLE 2, PO 1 OF 1983
3	AMENDMENT OF ARTICLE 8, PO 1 OF 1983
4	AMENDMENT OF ARTICLE 11, PO 1 OF 1983
5	AMENDMENT OF ARTICLE 24, PO 1 OF 1983

**ESTABLISHMENT OF THE OFFICE OF WAFAQI MOHTASIB (OMBUDSMAN)
(AMENDMENT) ORDINANCE, 2002**

ORDINANCE LXXII OF 2002

***An Ordinance to amend the establishment of the Office of the Wafaqi Mohtasib (Ombudsman)
Order, 1983***

WHEREAS it is expedient to amend the establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1783 (P.O. 1 of 1983), for the purposes hereinafter appearing;

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of Article 2, P.O. 1 of 1983. In the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1983 (P.O. 1 of 1983), hereinafter referred to as the said Order, in Article 2, in clause (1), after the word "statutory" the words "body" shall be inserted.

3. Amendment of Article 8, P.O. 1 of 1983. In the said Order, in Article 8, for clause (1), the following shall be substituted, namely:-

"(1) The members of the staff, other than those mentioned in the Article 20, shall be appointed by the President, or by a person authorized by him, in such manner as may be prescribed by the Federal Government."

4. Amendment of Article 11, P.O. 1 of 1983. In the said Order, in Article II, after clause (2), the following new clause shall be inserted, namely:

"(2A) If after considering the reasons of the Agency in respect of his recommendations under clause (2), the Wafaqi Mohtasib is satisfied that no case of mal-administration is made out he may alter, modify, amend or recall the recommendations made under clause (1).

Provided that where" the order is made on a complaint, no order shall be passed unless the complainant is given an opportunity of being heard."

5. Amendment of Article 24, P.O. I of 1983. In the said Order, in Article 24,-

- (a) in clause (1), after the word "Office" the words "and shall enjoy administrative and financial autonomy as may be prescribed by the Federal Government," shall be added; and
 - (b) in clause (2), for the words "Accounts" ,and word "Accounting" and for the words "a Ministry of Division" the words "him" shall be substituted.
-

